

CITATION: Placzek v. Green, 2010 ONSC 2952
COURT FILE NO.: 46392
DATE: 2010/10/15

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

CARMEN PLACZEK

Plaintiff

- and -

ALBERT GREEN

Defendant

)
)
) Barbara Legate & Ryan Steiner the
) Plaintiff
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) Todd McCarthy for the Defendant
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) **HEARD:** March 29, 30, 31, April 6, 7,
) 9, 13 & May 3, 2010

RADY J.:

REASONS FOR JUDGMENT

Introduction

[1] On March 4, 2003, Mrs. Placzek was the seat-belted, front seat passenger in her husband's car when it was struck from the rear by a vehicle driven by Mr. Green. Mr. Placzek was driving east on Oxford Street and turning right to merge onto Airport Road (now Veterans Memorial Parkway). Mr. Green was returning home after a shift at

General Dynamics and he was following the Placzek vehicle as it entered the merge lane. The speed at which the collision occurred and whether it was of sufficient force to cause injury is controversial.

[2] Mr. McCarthy for the defence submitted that liability is not “a big issue” but it could not be admitted because the claim exceeds policy limits.

[3] Mrs. Placzek was involved in a prior motor vehicle accident in 1989, in which she suffered soft tissue injuries. She was unable to work for a period of time after the accident and was diagnosed in 1991 as suffering from fibromyalgia. Following the first accident, she had significant complaints of pain and was treated by a variety of physicians, including her family doctor, Dr. Dempsey; Dr. Merskey, a psychiatrist; and Dr. Watson, a physiatrist who has a subspecialty interest in acute and chronic pain management. Prior to the second accident, Mrs. Placzek had been referred to Dr. Watson but the appointment was not scheduled to take place until after the second accident occurred. Prior to the accident of March 4, 2003, Mrs. Placzek’s physicians had urged her to reduce her hours of work or to stop working altogether because of its negative effect on her pain symptoms. Mrs. Placzek declined to do so. She was a successful real estate agent practising in partnership with her husband. However, some time following the second accident, Mrs. Placzek stopped working except for a few hours daily in a limited clerical support role.

[4] A claim is advanced for general non-pecuniary damages for pain and suffering, past wage loss, loss of future income and future housekeeping costs.

[5] Given the complexity of Mrs. Placzek’s pre-motor vehicle accident health history and the accounting evidence, as well as certain tactical decisions taken by the defence, the jury was discharged for written reasons delivered earlier. Much of the expert evidence was filed on consent, thereby saving considerable trial time. In addition, Mr.

Green was unable to attend court to testify because of impending cancer surgery. His examination for discovery transcript was admitted as his testimony at trial.

Liability

[6] Mr. Green's liability for the accident is a non-issue to my mind. He was returning home after a long shift at work including four hours of overtime. He was likely tired, having started work at 6:30 a.m. and finishing at about 7:00 p.m. He chose his particular route because it was quicker and avoided certain long red traffic lights. At his discovery, Mr. Green testified that he first saw the Placzek vehicle 300 feet in front of him and that he closed the gap between them. It is reasonable to conclude, therefore, that he was travelling faster than the Placzek vehicle.

[7] Mr. Green also prepared a diagram of the area of the collision. The plaintiff's vehicle was halfway through the merge channel onto Airport Road as he entered it. Mr. Green estimated his speed to be 20 km/hr as he proceeded in the merge lane. He looked over his left shoulder to check for traffic approaching from behind. It seems reasonable to estimate that a shoulder check would take approximately one second. He would therefore have travelled about a car length when he saw the Placzek vehicle unexpectedly stopped in front of him. His perception reaction time to activate his brakes would likely have been 1½ to 2 seconds or perhaps longer if there were an element of surprise, as is likely the case. No skid mark was noted at the scene. It is reasonable to conclude in the circumstances that Mr. Green could not possibly have slowed his vehicle to 5 km/hr prior to impact, as he said at his examination for discovery. He is simply mistaken on this issue. This conclusion is strengthened by the fact that Mr. Green "had everything I had on my brakes to get my truck stopped." In other words, he had to brake very hard in order to slow his vehicle to a stop.

[8] It is significant to note that in his report at the collision reporting centre, Mr. Green admitted that he was following too closely and that his vehicle had no defect. This is undoubtedly the most accurate explanation for the accident.

[9] Even if I were to conclude that Mr. Placzek bears some responsibility for the accident¹, by braking suddenly for example, the fact remains that Mr. Green is responsible to Mrs. Placzek for the full amount of any damages she has sustained (absent any contributory negligence).

[10] Turning then to the collision forces, there was conflicting evidence from each side about the forces required to cause tissue damage. The plaintiff retained Jamie Catania, a mechanical engineer and accident reconstructionist with GiffinKoerth Inc. and Robert Parkinson, a biomechanist and kinesiologist with the same firm. Mr. Catania's expertise is in the evaluation of vehicle damage, the determination of vehicle acceleration and the assessment of impact and severity. Mr. Parker's expertise is in the areas of occupant dynamics and injury potential.

[11] The defendant retained David Liske, an accident reconstructionist as well as Walters Forensic Engineering Inc. The Walters report was authored by Lino Garcia and Scott Walters, both engineers. Mr. Garcia was produced at trial for cross-examination.

[12] In coming to their conclusions, Mr. Catania and Mr. Parkinson reviewed all of the damage documentation as well as a great deal of the medical material for Mrs. Placzek. Notably, Mr. Liske reviewed only the damage documentation and concluded that the photographs taken of the vehicles showed no observable damage. In his report, Mr. Garcia referred to the medical legal reports of Dr. Weinberg and Dr. Clifford, both of

¹ There is some authority for the proposition that liability in a negligence action can be apportioned against a non-party: *Taylor v. Canada (Minister of Health)* (2009), 95 O.R. (3d) 561 (C.A.). This, too, represents a complicating factor in this case, although it was not argued before me. Mr. Green had attempted add Mr. Placzek as a defendant to this proceeding. The claim was summarily dismissed by Justice Little on October 15, 2007 as statute barred. His

whom conducted medical assessments for the defence. No reference was made to any of the medical information of Mrs. Placzek's treating physicians.

[13] For the reasons elaborated below, I prefer the plaintiff's experts' evidence on this issue. First, Mr. Liske and Mr. Garcia did not properly evaluate what damage was caused to the Placzek vehicle. They started with the premise that the Green vehicle was travelling 5 km/hr at the time of the impact, just as Mr. Green had said at his examination for discovery. They never considered that Mr. Green may have been mistaken, as I have found.

[14] It should go without saying that it is essential for experts to begin with a consideration of the objective evidence in approaching their analysis. Mr. Liske and Mr. Garcia did not do so, instead preferring Mr. Green's version of events over that of Mr. and Mrs. Placzek, and without any articulated reason for doing so.

[15] The objective evidence is the damage sustained by one or both vehicles. On this issue, Officer Bumstead of the Reporting Centre and Mr. Pritiko of Burwell Auto Body were helpful. They were neutral witnesses with no interest in the outcome of the case.

[16] Officer Bumstead testified that when he observed the Placzek vehicle, he found the bumper pushed in and scraped. He identified a photograph taken of the vehicle at the Centre and pointed to the damage he saw on the right rear bumper.

[17] Mr. Pritiko testified that the vehicle was repaired at a cost of \$2,700 (rounded). The following work was necessary:

- replace rear impact strip and right lower bumper extension
- replace rear bumper reinforcement

- repair rear body centre panel
- replace right tail lamp
- repair right quarter panel and tail lamp pocket
- repair rear rail and trunk floor

[18] Photographs of the vehicle taken at Burwell Auto Body on March 11 and 18, 2003 before repair show damage consistent with Mr. Pritiko's testimony. Officer Bumstead did testify during cross-examination that he did not recognize the vehicle in the March 18 photos as the one he saw at the collision centre. However, he agreed in re-examination that he had never seen the vehicle with the rear bumper removed as shown in that photograph.

[19] Mr. McCarthy suggested to Mrs. Placzek in cross-examination that perhaps the vehicle had been damaged between the time of the accident and its subsequent repair some two weeks later. Mrs. Placzek denied any knowledge of such an event and I have no reason to disbelieve her on this issue. There being no persuasive evidence of subsequent damage, I find that the vehicle was damaged in the collision as shown in the two sets of photographs taken at Burwell Auto Body.

[20] Mr. Liske and Mr. Garcia did not consider this evidence in formulating their opinions. Indeed, they proceeded on the basis that there was "no observable damage" to the Placzek vehicle. Further, they accepted without qualification Mr. Green's version of events and, in particular, how fast he said his vehicle was proceeding. As a result, their opinions about the collision dynamics are of no assistance to me, premised as they are on faulty assumptions.

[21] I accept the evidence of Mr. Catania that it is more likely than not that Mr. Green was travelling at 20-23 km/hr at the time of impact and there was a speed change of 12-15 km/hr to the plaintiff's vehicle, which exceeds the limits for tissue damage.

Damages

[22] The proper disposition of this case requires a careful analysis of Mrs. Placzek's position before the accident and her condition afterward. She asserts that while she had ongoing significant complaints of pain before March 4, 2003, she continued to work full time earning a healthy income while looking after her husband, three sons and their home, largely independently. The March accident, it is said, changed all of that. Her pain became so severe that she was no longer able to work except in a very limited capacity. She required, and continues to require, assistance in many respects, including for shopping and housekeeping.

[23] There is an issue whether the development of osteoarthritis in her right knee is causally linked to the accident.

[24] On the issue of income loss, the case is rendered more complex because of the way that Mr. and Mrs. Placzek ordered their finances. It is submitted that they were equal partners but they split income on other than a 50/50 basis for income tax purposes and for marketing reasons. Some years, Mrs. Placzek would allocate some of her commissions to her husband so that he would be recognized as a top producer, which they could use as a sales tool in advertising. Mr. Placzek also made two declarations in bankruptcy.

[25] Further complicating matters is that following the accident, two of the couple's sons obtained their real estate licences and began to work with their father as a team. The defence seems to take the position that the family unit has sustained no loss and that Mr. Placzek's earnings have not been affected by his wife's injuries.

Pre-Motor Vehicle Condition

[26] As already noted, the plaintiff was in a motor vehicle accident in 1989, in which she suffered injuries leaving her with pain in the lumbar-dorsal area and her legs and headaches. She was unable to work as she had before the accident as a real estate agent. In 1991, she was diagnosed as suffering from fibromyalgia. She remained off work until 1993 when she returned full time. She had commenced a lawsuit arising from the accident, which was settled for a global figure in 1994. It is apparent that Mrs. Placzek had not fully recovered from those injuries when the second accident occurred. This is made clear from a review of the medical records from before 2003 and is reflected in Dr. Merskey's report dated April 8, 2007 to Ms. Legate's office. Indeed, Mrs. Placzek had ongoing significant complaints of disabling pain. Even a brief review of some of her treating physicians' notes reflect this. In October 2002, Dr. Merskey recorded her complaints of a "tremendous amount" of pain through her whole body that was not letting her function. She told him that she had to get the pain under control and that she could not do anything. In his note to Dr. Dempsey of October 23, 2002, Dr. Merskey comments that Mrs. Placzek "is getting quite desperate with the pain, understandably so." This is but one example. The records are replete with references to complaints of significant pain.

[27] Dr. Dempsey's notes contain multiple entries recording complaints of headache and back pain from 1998 through to just before the March accident. In addition, on February 28, 2003, it is recorded that Mrs. Placzek slipped on ice, fell backwards and hit her head and back. She complained of increased headaches and lower back pain as a result.

[28] Interestingly, Mrs. Placzek experienced temporary relief from her pain symptoms when she went on vacation. It is also fair to say that Mrs. Placzek's recovery was complicated by her husband's lack of empathy and support and his infidelity. Both Dr. Merskey and Dr. Dempsey's clinical notes document this. By way of example, there are entries in Dr. Dempsey's chart in 1998 through 2002 documenting Mr. Placzek's lack

of insight into his wife's complaints. It appears that he was insistent that she work notwithstanding her pain. He made fun of her and he was reportedly verbally abusive. There was a period of separation starting in 1999 but the couple reconciled in 2000.

[29] Mrs. Placzek was prescribed a variety of medications over the years, including Naprosyn, Elairl, Lorazepam, Loxapam, Amytryptiline, Nozinan, Flexeril, to name a few. In mid 2002, she was prescribed Codeine Contin and Oxycocet. In October of the same year, she began to take Oxycontin.

[30] Notwithstanding Mrs. Placzek's ongoing and persistent pain symptomology, she was able to work full time as a realtor. It is clear that she derived a good deal of personal satisfaction from her work and she was very well regarded by her colleagues, several of whom testified including Mr. Vandergoot, Mr. Orlando and Mr. Meddaoui. While they admired Mr. Placzek's success, it is apparent that special affection was reserved for Mrs. Placzek with whom most preferred to deal. The Placzeks were very successful and noted for their strong work ethic.

[31] Mrs. Placzek's income tax returns demonstrate the level of her success. In 2001, her gross commission income was \$249,543 and in 2002, it was \$329,656. However, and importantly, her physicians consistently recommended that she reduce her workload. For example, on September 18, 2002, Dr. Dempsey said this:

Follow-up medications. Feels intense fatigue, "drained" poor appetite, back pain, recurrence of GI symptoms. Multiple complaints repeated – has tried to reduce work hours – pointed out pattern of complete cessation of symptoms when away and return of symptoms when returns home and to work even with reduced hours. Same pattern over many years. Carmen unwilling to accept or deal with idea of different job.

[32] Earlier in December 2001, Mr. Dempsey noted that Dr. Merskey, Dr. Rebel, Dr. Burdan and Dr. Stewart all told her she should quit her job. Dr. Merskey's chart provides

corroboration. This, then, was Mrs. Placzek's presentation on March 4, 2003, when the second accident occurred. She had ongoing and significant complaints of pain for which she was prescribed a variety of medication, including narcotics by 2002. However, she continued to work full time, although against the advice of her physicians.

Post Motor Vehicle Accident Condition

[33] Mrs. Placzek saw Dr. Dempsey the day after the accident. She complained of pain in the head and neck with an increase of headaches. She had numbness in the left arm, hand, left trunk, leg and foot. He diagnosed her as having sustained an "acute cervical upper back strain on her chronic fibromyalgia". He noted that there was an increase in her low back pain which radiated upward and down her leg.

[34] Dr. Dempsey continued to see Mrs. Placzek on a regular basis following the accident. She underwent physiotherapy and used a TNS machine. She was prescribed a number of medications, including Nozinan, Amitriptyline, and Elavil, among others. Although she had been prescribed Oxycontin before the accident for gynecological issues, her prescription was continued and her dosage was steadily increased afterward because of poor pain control. Later in 2007, she began to take Gabapentin.

[35] Mrs. Placzek continued to see Dr. Merskey whose records and reports document largely the same complaints and difficulties noted by Dr. Dempsey. I pause here to note that in 2003 and 2004, Mr. and Mrs. Placzek experienced some further marital discord and Mr. Placzek was not particularly supportive of his wife. That appears to have resolved, however, and there are no further references in Dr. Dempsey's notes to family problems after July 2004, although Mrs. Placzek's mother had health issues, which were a source of stress.

[36] Mrs. Placzek began to see Dr. Watson who began treatment with injections to “trigger points” in the cervical spine and facet injections to the lumbar spine. She had lumbar epidural cortisone injections as well. While she experienced pain relief following these treatments, unfortunately it was not permanent. Those treatments continue to the present.

[37] Mrs. Placzek was also seen by Dr. Harth, a rheumatologist for independent medical assessments on behalf of Mrs. Placzek’s insurer and in connection with this proceeding. She was seen by Dr. Wong, a physiatrist, for a medical-legal evaluation.

[38] She was also seen by Dr. Clifford, a physiatrist, and Dr. Weinberg, an orthopaedic surgeon, for defence medical-legal reports. More will be said about the independent medical reports later.

[39] Unfortunately, Mrs. Placzek has gained a considerable amount of weight since the accident and she has had limited success in losing it. She walks with the assistance of a cane because of the development of left knee pain, the etiology of which is unclear although the plaintiff submits that it is related to the car accident. On April 16, 2004, Dr. Dempsey noted some swelling of the right knee and one month later, he documented complaints of pain and swelling in both knees although Dr. Dempsey did not find swelling on examination but rather increased adipose tissue. He noted complaints of knee pain on October 6, 2003.

[40] In December 2006, because of ongoing complaints of knee pain, Mrs. Placzek was referred to Dr. MacDonald, an orthopaedic surgeon. She was diagnosed as having early osteoarthritis for which continued anti-inflammatories were recommended. By September 2009, arthritic changes were noted to have progressed to the point that left knee replacement was warranted. It is anticipated that Mrs. Placzek will undergo that surgery in the near future.

[41] As noted, the issue is whether it is more likely than not that Mrs. Placzek's left knee was injured during the accident which has led to her current condition. Having reviewed the records and the various relevant reports, I have concluded that Mrs. Placzek's complaints of knee pain and the development of osteoarthritis is not causally related to the accident. No complaints of knee injury or knee pain were documented by Dr. Dempsey at the time of the accident. Those complaints are not noted until one year after the accident.

[42] Further, in his report of December 3, 2009, to Ms. Legate's office, Dr. Dempsey candidly states that he does not know whether his patient suffered knee strain in the accident. He acknowledges that there were references in the physiotherapy notes made shortly after the accident to knee pain but he considered that this could be related to joint problems or fibromyalgia. However, he said that he did not observe the knee swelling recorded in the occupational therapist's assessment of June 2003. He considered that the complaints of knee pain recorded in October 2003 were related to low back pain and radiated pain from the back.

[43] Further, Dr. MacDonald's note of January 10, 2007 records that Mrs. Placzek "does have some medial joint line tenderness with her left knee greater than her right. However, this is easily confused with the fibromyalgia tender points in her hamstring..."

[44] In his report of January 25, 2010, Dr. Harth refers to Mrs. Placzek's complaints of knee pain. He says that "It is not clear when this knee pain first occurred...when I first saw her in February 2004, she already had evidence of patellofemoral crepitus and an Osmond-Clark sign, both suggestive of patellofemoral osteoarthritis. However, I cannot be sure as to the exact date of onset of the knee pain. I can, therefore, not be sure as to whether there is a causal relation between the knee pain and her motor vehicle collision of March 2003."

[45] In his follow-up report to Ms. Legate of February 27, 2010, Dr. Harth accepts that Mrs. Placzek's weight gain contributed to the development and worsening of osteoarthritis but considered that weight gain was not an inevitable consequence of the car accident. He noted that in February 2004, he found "clinical evidence of osteoarthritis of the knees. Osteoarthritis is usually a slowly progressing process. Radiological signs usually precede clinical symptoms. I, therefore, think that it is more likely than not that an osteoarthritic process had already started before the motor vehicle collision of March 2003, but that likely that process was worsened by her subsequent weight gain."

[46] Dr. Harth's opinion is persuasive and seems to align with that of Dr. Dempsey, who has had the benefit of seeing and treating Mrs. Placzek for a long period of time.

[47] In the circumstances, I am not satisfied that Mrs. Placzek has demonstrated that it is more likely than not that the development of osteoarthritis is causally linked to the accident. However, I am persuaded that Mrs. Placzek's weight gain has had an impact on the condition and while weight gain is not an "inevitable" consequence of a car accident, the risk of gain is increased because of the use of medications and the deconditioning that occurs due to lack of activity. To be clear, however, Mrs. Placzek would have developed osteoarthritis regardless of the car accident and surgery would have been required at some point.

[48] Turning then to the issue of whether Mrs. Placzek's current complaints are related to the March accident or whether they are the consequence of her earlier accident or perhaps her falls, the preponderance of the medical evidence supports the former conclusion.

[49] Her treating physicians, Drs. Dempsey, Merskey and Watson, are unanimous in their view that Mrs. Placzek's current and ongoing symptomology are related to the 2003

accident. The independent assessors, Dr. Harth and Dr. Wong, concur. Only Drs. Clifford and Weinberg hold a different view. I prefer the evidence of the medical professionals who have treated the plaintiff. They have an obvious advantage, having seen Mrs. Placzek for a considerable period of time. Moreover, Drs. Dempsey and Merskey have the further advantage of having treated Mrs. Placzek for more than a decade before the second accident. They are surely in the better position to evaluate her condition before and after the second accident and in particular, its effect on her condition.

[50] I also favour the reports of Drs. Harth and Wong over those of Dr. Weinberg and in particular, Dr. Clifford. Dr. Clifford's reports are of limited assistance because they have a distinctly adversarial tone or contain statements of advocacy. A few examples suffice to illustrate the point. Throughout his report, he adds an "Ed.", presumably to mean an editorial comment. At one point, he notes the following:

It is difficult for this evaluator to believe that Ms. Placzek was working full time with no complaints at the time of the accident since only few days prior to her MVA she fell backwards and hit her head (as per notes quoted above).

(Ed. There seems no way to accurately document the number of hours per week Ms. Placzek had actually been working – at least by History.

Instead, perhaps it would be useful to submit pre-MVA earnings over a 5-year period to a senior Real Estate Agent – requesting an opinion as to the amount of work represented by these earnings, in the context of Ms. Placzek working with an exceedingly high producer such as her husband!

[51] It is not clear to me why Dr. Clifford would consider it necessary to give this sort of direction presumably to defence counsel.

[52] In reference to Dr. Watson's report of December 10, 2007, commenting on Mrs. Placzek's limitations, Dr. Clifford characterizes his opinion "as essentially a statement of advocacy, almost certainly a reflection of information provided by Ms. Placzek."

[53] At another point, Dr. Clifford notes that "[n]otwithstanding this rather remarkable array of symptoms, Ms. Placzek reported to me that she was working "80 hours per week"! (punctuation original).

[54] The tone of these entries strike me as somewhat sarcastic, adversarial and unhelpful to the court.

[55] Finally, a number of lay witnesses were called to describe Mrs. Placzek before and after the 2003 accident, including her sister Catherine Harris, her sons, Robert and Richard, her friend Renee Hansmann, her cousin Lisa Browne, and her niece Dorota Kustra. Their evidence was quite consistent that notwithstanding her pre-motor vehicle accident limitations, Mrs. Placzek functioned well with little assistance. After the accident, she changed. She is more pain focused and does not take the same pride in her physical appearance. Her previously jovial and exuberant personality is diminished. She is not as happy, positive or energetic as her son Robert testified.

[56] In conclusion, therefore, Mrs. Placzek sustained injuries in the 2003 accident that exacerbated her pre-existing condition, entitling her to general damages for pain and suffering. Her injuries also had an impact on her working life and to some extent, her ability to assume responsibility for household duties, all of which are discussed below.

General Damages

[57] I would assess Mrs. Placzek's general non-pecuniary damages at \$85,000 given that her chronic pain condition has been significantly disabling.

Future Loss of Income

[58] This head of damages raises a significant issue in this case. I propose to deal with it first because the factual findings have an impact on the calculation of past wage loss. The plaintiff led uncontroverted evidence that supports the conclusion that:

- Real estate teams are attractive to clients;
- Real estate teams earn significantly more commission income than their solo counterparts;
- Real estate teams typically split their income on a 50/50 basis;
- Older agents tend to earn higher incomes than younger ones;
- Real estate agents often work past customary retirement age;
- The Placzeks' earnings would have increased over time as London market values and sales increased;

[59] The plaintiff submits that but for the accident in 2003, she would have continued to work with Mr. Placzek and that their income would have steadily increased over time. Notwithstanding her fibromyalgia, or continuing pain symptomology, she would have continued to work as she had prior to March 2003.

[60] The defence submits that given Mrs. Placzek's complaints of very significant pain prior to the second accident, it was inevitable that she would have ceased employment in the not too distant future.

[61] In assessing this head of damages, I start with the following findings:

- Mrs. Placzek's sustained injuries in an accident in 1998 which caused her soft tissue injuries culminating in a diagnosis of fibromyalgia;
- She had very significant complaints of widespread pain pre-motor vehicle accident;

- Notwithstanding her pain, she managed to work full time, successfully and lucratively as a real estate agent;
- Her medical professionals urged her to curtail her hours or stop work altogether, advice that Mrs. Placzek would not heed;
- Mrs. Placzek felt pressure from her husband to continue to work;
- Her pain symptoms improved when she was not working, for example, when she went on vacation;
- Two of the Placzek's three sons obtained their real estate licences in the mid-2000s and began to work in the "family business"; and
- Mrs. Placzek stopped working some time after the 2003 accident, although it is not clear precisely when that occurred. She is only able to provide limited assistance to her husband and sons.

[62] In my view, given Mrs. Placzek's ongoing complaints of severe pain prior to the March accident, it is most unlikely that she would have continued to work at the same level that she had formerly or for as long. The pain was largely intractable and resistant to analgesics. Her treating physicians urged her to reduce her hours or cease work altogether. Her pain was such that the referral was made to Dr. Watson, a pain specialist. While she experiences relief from Dr. Watson's treatment, the pain invariably returns. I find that it is inevitable that Mrs. Placzek would have scaled back on her hours of employment and would have eventually retired altogether earlier than she might have but for the first accident.

[63] The fact that Richard and Jeff obtained their real estate licences and entered the sales field is a significant one. Their addition and contribution to the business would have provided Mrs. Placzek with the ideal opportunity to reduce her level of activity in order to pace herself and manage her pain. As a result, it is reasonable to conclude that Mrs. Placzek would have scaled back on her efforts beginning in March 2005, some time after Richard obtained his licence. As her sons began to become established, it is

reasonable to assume that Mrs. Placzek would have worked half-time from mid-2005 onward.

[64] Mr. Placzek is nine years his wife's senior and he will turn 65 in 2012. There was evidence that Mrs. Placzek thought that she would retire when her husband did so that they could travel. However, the evidence would also seem to suggest that Mr. Placzek will not necessarily or even likely retire at age 65, particularly in light of his two bankruptcies. Nevertheless, the most reasonable conclusion given Mrs. Placzek's significant pain levels is that she would have continued to work half time to the age of 59 when she would have retired altogether.

Past Loss of Income

[65] I have already concluded that Mrs. Placzek would have worked part-time from March, 2005, until the date of trial. She has received income replacement benefits for which the defence is entitled to credit. I understand that there is a dispute about the extent of the credit available, about which I will comment below. She would have earned approximately one-half of her pre-motor vehicle accident income. I favour the projected income calculations contained in Mr. Principe's report dated December 15, 2009 although he did not consider a scenario consistent with the above finding. I will leave it to counsel to arrange for the necessary calculations. In the event there is difficulty, counsel may make further submissions either orally or in writing, as they prefer. For clarity, I consider Mr. Principe's approach, in which he takes into account the growth trends in Mrs. Placzek's earnings and the growth of the London real estate market after the second accident, to be a realistic approach to the calculation of Mrs. Placzek's projected earnings.

Future Care Costs

[66] It is clear from the evidence that Mrs. Placzek had about four hours of weekly housekeeping assistance from her niece prior to the motor vehicle accident. However, it appears that she requires some additional housekeeping assistance given her current limitations. The girlfriend of one of her sons has also been providing assistance with shopping and driving to and from appointments.

[67] In the circumstances, I am satisfied that Mrs. Placzek requires an additional two hours of housekeeping and related assistance at a cost of \$50.00 per hour plus tax.

[68] She continues to incur real estate fees in order to maintain her licence which is not unreasonable. There was no challenge to those fees and I would allow them as claimed.

[69] Finally, there is a modest claim for a light weight vacuum cleaner and an ergonomic computer screen which seem reasonable and are therefore allowed.

[70] Judgment will issue in accordance with these reasons. I will receive brief written submissions on costs including details of any offers to settle within 30 days. Once the necessary calculations respecting past and future income loss have been made, I would ask counsel to provide me with brief written submissions respecting the issue of the credit to be given to the defence. Alternatively, those submissions may be made orally in the event that counsel request an appearance.

"Justice H.A. Rady"
Justice H. A. Rady

Released: October 15, 2010